

25STCV25068 25STCV25068

County: los-angeles

Division: Civil Law and Motion

Department: 224

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Case Number: 25STCV25068 Hearing Date: August 5, 2026 Dept: 224

Rodriguez v. Guerrero

TENTATIVE RULING

The Order to Show Cause Re Default/Default Judgment is Continued to December 3, 2026, to allow Plaintiff to comply with all required rules of court.

Default entered on 11/25/25 is VACATED. Plaintiff will need to prepare and serve a proper statement of damages before default can be entered.

The Court reminds the Plaintiff that being self-represented does not excuse her from researching the requirements to obtain entry of default and a separate default judgment. The law also limits the amount of damages that the Plaintiff can seek, and requires admissible evidence to prove the damages. Plaintiff must educate herself, or go to a center that assists self-represented litigants, like the Los Angeles Law Library.

ANALYSIS

FACTS OF THE CASE: Plaintiff Rita Rodriguez seeks default judgment against Defendant Lorenzo Guerrero in the amount of \$20,000,215, consisting of \$10,000,000 in general damages, \$5,000,000 in special damages, \$5,000,000 in punitive damages, and \$215 in costs. The complaint asserts causes of action for assault and intentional infliction of emotional distress arising from an alleged November 29, 2023 physical assault at Plaintiff's home at 753 Harding Avenue, Los Angeles, committed in the presence of Plaintiff's minor daughter. The complaint's caption lists a third cause of action for negligence, but no negligence cause of action is pleaded in the body of the complaint.

PROOF OF SERVICE/DEFAULT: Default previously entered on 11/26/2025.

GENERAL DAMAGES: \$ 10,000,000

SPECIAL DAMAGES: \$ 5,000,000

PUNITIVE DAMAGES: \$ 5,000,000

COSTS: \$ 215

TOTAL: \$ 20,000,215

ANALYSIS:

The plaintiff did not file an amended complaint after default was entered, and the defendant did not appear before default was entered.

There is no pending motion to vacate default.

There were no DOE defendants to dismiss.

A CIV-100 form was used to request court judgment and the declaration of nonmilitary status requirement is filled out.

A memorandum of costs is verified on the CIV-100 form.

Three declarations under penalty of perjury support the request: a 585 declaration, a declaration of damages, and a personal statement. There was also a separate declaration submitted regarding Defendant's military status.

The Complaint appears to allege a valid claim for assault and intentional infliction of emotional distress. It alleges that Defendant intentionally attempted harmful or offensive contact, placed Plaintiff in fear, used force while trying to remove her from her home, and intentionally caused her emotional distress. The Complaint does not, however, contain a pleaded negligence cause of action despite listing negligence as a cause of action in the caption.

PROBLEMS:

Entry of default is void, as Plaintiff failed to serve a statement of damages before default was entered. The complaint pleads assault and IIED, which are personal injury claims. CCP § 425.11 requires a statement of damages served before default can be entered. The "declaration of damages" submitted does not fulfill this requirement, as in a personal injury the damages amount needs to be noticed specifically via a served CCP § 425.11 statement.

CIV-100 item 2 is internally inconsistent and incorrectly filled out. It lists both a "demand of complaint" of \$20,000,000 and statement-of-damages amounts of \$5,000,000 special and \$10,000,000 general. The lines as stated should sum to \$35,000,215, and the stated total of \$20,000,215 includes \$5,000,000 in punitive damages that appear nowhere in item 2 of the CIV-100.

Plaintiff submitted a proposed judgment, but it was not on a JUD-100 form.

No statement of punitive damages was served before entry of default. In addition, there was no evidence of Defendant's financial condition submitted.

The evidence does not sufficiently support the damages sought. The request for \$5,000,000 in special damages is supported by no medical records, therapy invoices, or receipts of any kind. The request for \$10,000,000 in general damages is supported only by Plaintiff's narrative declaration. Plaintiff describes pain, bruising, fear, anxiety, sleep difficulty, humiliation, and emotional distress, but provides no medical or psychological records, photographs, police reports, or other corroborating evidence. The 585 declaration states that a copy of a police report is attached as Exhibit A, but it is not.

DISPOSITION:

The Court hereby VACATES the Entry of Default ON 11/25/25 as VOID. The request for Default Judgment is DENIED.

The Order to Show Cause Re Default/Default Judgment is Continued to December 3, 2026, to allow Plaintiff to comply with all required rules of court.

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The Court reminds the Plaintiff that being self-represented does not excuse her from researching the requirements to obtain entry of default and a separate default judgment. The law also limits the amount of damages that the Plaintiff can seek, and requires admissible evidence to prove the damages. Plaintiff must educate herself, or go to a center that assists self-represented litigants, like the Los Angeles Law Library

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.